

July 13, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0001017 American Express National Bank vs. Xavier R. Jimenez

Appearance required by Plaintiff to provide evidence as to how the request for costs has been calculated. The Court requests counsel for Plaintiff submit a declaration re costs in advance of the hearing. The Court is inclined to grant Plaintiff's motion with the additional information submitted under penalty of perjury.

2. CL0003437 Capital One, N.A. successor by merger to Discover Bank vs. Michelle Mattingly

No appearances required. On the Court's own motion and in light of the Declaration filed by counsel for Plaintiff, the Court continues the OSC re Dismissal to September 18, 2026 at 1:30 p.m. in Dept. A. Plaintiff shall file a proof of service, an application to serve by publication (if deemed appropriate), or a request for dismissal of defendant in advance of the continued order to show cause date. The Court is disinclined to provide further continuances absent continued good faith and diligent efforts to serve.

3. CL0003717 Crown Asset Management, LLC vs. Steven Christopherson

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for September 18, 2026 at 11:00 a.m.

4. CL0003782 JP Morgan Chase Bank vs. Jessica DeAragon

No appearances required. On the Court's own motion and in light of the proof of service filed on June 26, 2026, the OSC re Dismissal is hereby dismissed.

5. CU0000485 Jennifer Hicks, et al vs. Sonia Sokolow, et al.

Defendant Sonia Sokolow's Motion for Set Aside of Default (Amended) is DENIED.

Defendant filed her motion on May 5, 2026 seeking set aside of entry of default issued on January 15, 2025. Subsequently, Defendant filed an Amended Motion to Set Aside on June 22, 2026 ("Motion"). There is no proof of service evidencing the amended motion was ever served on Plaintiffs, Jennifer Hicks and David Silber. However, on the same date the amended motion was filed, Plaintiffs filed their Opposition to Defendant's Motion. In their opposition, Defendants clearly address the issues raised in the amended motion as opposed to the original motion. Moreover, Defendants do not object to the timeliness of the filing and/or any presumed service of the amended motion. Accordingly, the Court will consider the Amended Motion filed